

1. **Townley v. Sherborne.** — This canon appears to have been first established by the case of *Townley v. Sherborne* (b) in the reign of Charles the First.

A., B., C. and D. were trustees of some leasehold premises. A. and B. collected the rents during the first year and a half, and *signed acquittances*; but from that period the rents were uniformly received by an assign of C. The liability of A. and B. during the first year and a half was undisputed, but the question was raised whether they were not also chargeable with the rents which had accrued subsequently, but had never come to their hands? “The *Lord Keeper Coventry*” (says the reporter) “considered the case to be of great consequence, and thought not to determine the same suddenly, but to advise thereof, and desired *the Lords the Judges Assistant* to take the same into their serious consideration, whereby some course might be settled that parties trustees might not be too much punished, lest it should dishearten men to take any trust, which would be inconvenient on the one side, nor that too much liberty should be given to parties trustees, lest they should be emboldened to break the trust imposed on them, and so be as much prejudicial on the other side. And the *Lord Keeper and the Lords the Judges Assistant* afterwards conferring together, and upon mature deliberation conceiving the case to be of great importance, his Lordship was pleased to call unto him also *Mr. Justice Crook, Mr. Justice Barclay, and Mr. Justice Crawley*, for their assistance

(b) *Bridg.* 35; and see *Leigh v. Barry*, 3 Atk. 584; *Anon. case*, 12 Mod. 560.

trustee is always responsible for any act in which he takes part; *Maccubbin v. Cromwell*, 7 G. & J. 157; *Spencer v. Spencer*, 11 Paige, 299; *Hauser v. Lehman*, 2 Ired. Eq. 594; but the bulk of authorities make no distinction between these and the receipts for trust funds; *Atcheson v. Robertson*, 3 Rich. Eq. 132; *Kep v. Deniston*, 14 Johns. 23; *Griffin v. Macauley*, 7 Gratt. 476; see *Ringgold v. Ringgold*, 1 H. & G. 11; if a proper investment is once made, the joint liability terminates; *Glenn v. McKim*, 3 Gill, 366; there is no liability on the part of one who has renounced the trust; *Claggett v. Hail*, 9 G. & J. 80; nor is the estate of a deceased trustee liable; *Towne v. Ammidown*, 20 Pick. 535. See also as to liability of co-trustees; *McCarter v. McCarter*, 7 O. R. 243; *Crowler v. Hinman*, 10 O. R. 159; *Burritt v. Burritt*, 29 Chy. 321; *Ratz v. Tylee*, 11 Chy. 342; *Mitchell v. Ritchey*, 12 Chy. 88; *Mickleburgh v. Parker*, 17 Chy. 503; *McKelvey v. Rourke*, 15 Chy. 380; *Henderson v. Woods*, 9 Chy. 539.